MARIO DAMANI

Versus

WATERBESSIE INVESTMENTS (PVT) LIMITED

And

THE PROVINCIAL MINING DIRECTOR MASHONALAND CENTRAL N.O

And

OFFICER –IN-CHARGE ZRP BINDURA N.O

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 3 February 2026

J. DONDO, for the applicant

M.G. BUMHIRA, for the respondent

COURT APPLICATION FOR RESCISSION OF JUDGMENT

CHIRAWU-MUGOMBA J: This matter was placed before me as an application for rescission of judgment in terms of R27(1) of the High Court Rules, 2021. Its roots lie in an order by MUSITHU J of the 22nd of July 2025 that reads as follows:-

1. The application for spoliation be and is hereby granted.
2. The first respondent, his agents, partners, and all persons acting through him, be and are hereby directed to forthwith restore to the applicant possession of a portion of a certain piece of land situate in the District of Mazoe called Subdivision B of Vergenoeg measuring 871,0789 hectares, commonly known as Billabong Farm which has been demarcated by a fence erected by the first respondent.
3. In the event that the first respondent does not comply with paragraph (2) above, the Sheriff of the High Court of Zimbabwe, together with third respondent or such officers as may be assigned by the third respondent, be and are hereby authorized to take all necessary steps to restore possession thereof to the applicant
4. The first respondent shall pay the applicant costs of suit.

In respect of the interdict

TERMS OF FINAL ORDER SOUGHT

That Respondents show cause if any, why a final order should not be granted in the following terms:

1. Pending the finalization of the application under case No. HCH 705/22, the first respondent be and is hereby prohibited from interfering with the applicant's farming activities on a certain piece of land situate in the District of Mazoe called Subdivision B of Vergenoeg measuring 871,0789 hectares, commonly known as Billabong Farm.

2. The first respondent shall pay costs of suit.

INTERIM RELIEF GRANTED

Pending confirmation or discharge of the final order:

The first respondent be and is hereby prohibited from interfering with the applicant's farming activities on a certain piece of land situate in the District of Mazoe called Subdivision B of Vergenoeg measuring 871,0789 hectares, commonly known as Billabong Farm.

This order was granted on the basis of a composite urgent chamber application for a *mandament van spolie* and an interdict sought by the first respondent against the applicant. Let me hasten to state that at the hearing and upon inquiry, it emerged that case number HCH 705/22 upon which the interim relief hinged, was dismissed with costs by MAMBARA J on the 22nd of September 2025 . Mr. *Dondo* submitted that the provisional order was thus rendered nugatory.

At the end of the hearing, I granted the relief sought but only in respect of the spoliatory relief as follows:

1. The application for rescission of judgment be and is hereby granted.
2. The judgment in HCH 3437/25 but only in relation to the spoliation order dated the 22nd of July 2025 be and is hereby set aside.
3. HCH 3437/25 only in relation to the application for a spoliation order shall proceed in terms of the rules.
4. Each party shall bear their own costs.

I have been requested for reasons and these are they.

The applicant in his founding affidavit avers that he was not in wilful default. That a notice of set down was handed over to his wife at a time when he was away. A supporting affidavit from his wife is attached. He was attended to by his legal practitioners on the 18th of July 2025 but by that time, an order in default had already

been granted on account of his failure to attend court on the 17th of July 2025. He was never served with the urgent chamber application and only became aware of its contents upon his legal practitioner accessing the same. He has a good and bona fide defence since he is the registered owner of VALE 40 Mine , " the mine". There have been disputes since 2016 and as far back as 2017, the disputes have been resolved in his favour. At one stage after a case under HCH 6357/17 had been filed, the parties resolved the issues amicably. In compliance with the settlement and with EMA requirements, the applicant erected a perimeter fence. This fence was removed by the first respondent's employees and this is the same fence that was replaced in 2025. He avers that he did not take the law into his own hands but acted only to replace the fence as per the 2017 settlement. It should be noted that in HCH 7055/22, the first respondent is seeking that applicant fences the area so that it will not interfere with the first rspondents livestock and farming.

In the notice of opposition, the first respondent disputes the fact that the notice of set down was served on the 17th of July 2025 as alleged. It was actually served on the 16th of July 2025 on one Blessing. In HCH 3437/25 it was noted that the applicant was served with both the application and the notice of hearing. There is no reasonable explanation for the default. Applicant has no *bona fide* defence to the claim as he has not denied using self-help to deprive the first respondent from possession of a piece of land under cultivation. The fence was erected in July 2025 and not May 2025. It is denied that a perimeter fence was put up in 2018. When the first respondent occupied the property, no fence was in existence. There is a pending application filed in HCH 705/22 which must be allowed to proceed so that the courts determine the respective rights of the parties.

In the heads of argument, the applicant submits as follows.

That a party that applies for rescission of judgment must show good and sufficient cause. In *Zinondo v CAFCA Limited*, SC 64/17 at page 4 with the court, stated that,

> *"In an application for precision of a default judgment the court must be satisfied that there is good in sufficient cause to rescind the order"*

Makoni v CBZ Bank limited HH357-16 where CHITAKUNYE J quoted the case of *Stockil v Griffiths* 1992 (1) ZLR 172 (S) at 173D-F wherein GUBBAY CJ noted that,

"The factors which a Court will take into account in determining whether an Application for Rescission has discharged the onus of proving "good and suffuent cause as required to be shown by Rule 63 of the High Court of Zimbabwe Rules 1971, are well established

• They have been discussed and applied in many decided cases in this Country. See for instance, Barclays Bank of Zimbabwe Ltd V CC International (Pvt) Ltd S-16-86 (not reported); Ronald and Another V McDonnel 1986 (2) ZLR 216(S) at 266 E-H: Songore v Olivine Industries [Pvt] Ltd 1988 (2) ZLR 210 (S) at 211 C-F. They

are:-

i) The reasonableness of the Applicant's explanation for the default;

ii) The bona fides of the Application to Rescind the Judgment;

and

iii) The bona fides of the defence on the merits of the case which carries some prospect of success."

The applicant has met all these requirements. The documents submitted of record reveal that there has been a long- standing dispute between the farmer and the miner and in terms of the Mines and Minerals Act [Chapter *21: 05*], the miners rights take precedence. The farmer can only exercise their rights as long as such exercise does not interfere with the mining activities – *Satond Investments (pvt) Limited vs Munashe Shava.* HH-336-18. Further that it is not disputed that the applicant is the owner of the mine. He is obliged to put up a perimeter fence for security and compliance reasons,

Per *contra* the first respondent places reliance on he case of *Beitbridge Rural District Council v Russell Construction (Pvt) ltd* 1998 (2) ZLR 190 (S), where the court stated that,

> *"That in granting rescission the court normally considers (a) the applicant's explanation for his default; (b) the applicant's good faith; and (c) the bona fides of his defence on the merits as well as the prospects of success."*

It submits that the applicant has failed to meet these requirements. There is no reasonable explanation for the delay proffered- *National Railways of Zimbabwe vs Bravo Enterprises (pvt) Limited,* HH-23-16. It is trite that in spoliation matters, the lawfulness or otherwise of possession is not an issue. What is required is the restoration of the status quo ante- *Nyamande vs Mahachi and ors,* SC-45-23.

At the hearing, the following submissions were made. Mr *Bumhira* submitted as a preliminary issue the fact that the spoliation order had been effected and therefore the present application was now academic.

In motivating the application, Mr. *Dondo* in addition to the heads of argument submitted that there was no wilful default. One Blessing on whom the application was served on is unknown to the applicant. There is a long- standing dispute between the parties and it is inconceivable that the applicant would ignore the process. The judgment ought to be rescinded so that the applicant can be given an opportunity to defend the urgent chamber application. In HCH 705/22, the first respondent in the draft order was seeking that the applicant must fence off its portion. The dispute is between a miner and farmer.

Mr *Bumhira* in addition to the heads of argument reinforced the issue of mootness. Because the spoliation order was executed, there was no judgment to rescind. The applicant in HCH 774/25 had its urgent chamber application for stay of execution against the spoliatory relief dismissed by WAMAMBO J. The first respondent is not submitting that there should be no fence but that the authorities should demarcate them.

The legal issue before the court is whether or not the applicant has shown good and sufficient cause for the rescission of the stand-alone spoliatory relief? It is trite that spoliatory relief is final in nature – *Blue Rangers vs Muduviri and anor,* 2009(1) ZLR 376 (SC). On the mootness of the relief sought, it is my considered view that the application is not moot. There is a default judgment for spoliation that is still extant.

Going by the meaning of good and sufficient cause, the applicant has given a reasonable explanation for non-attendance at the hearing. It is inconceivable that having defended matters as far back as 2017, the applicant would fail to defend the spoliation proceedings. I accept the explanation proffered including the affidavit by the applicant's wife in support. The applicant has acted *bona fide.* He did not sit on his laurels but engaged counsel to look into the matter. I find no ill- will on the part of the applicant in filing the application for rescission.

On prospects of success, it is apparent that the parties have been at logger heads since 2017. In HCH 6357/17, it is noted that the parties involved resolved the matter amicably including the issue of the fence. In my view, the issue of the fence is the Achilles tendon in this matter. It seems possible that indeed the fence put up was

in compliance with the settlement. The order for spoliation raises more questions than answers. The dispute is clearly a miner/farmer one and even though a spoliation order does not deal with the merits, this relationship is *sui generis.* Two parties must co-exist on the same piece of land, one farming and the other mining. It appears to me that the applicant might have a reasonably arguable or plausible case in defence of the application for spoliation. That order though granted in 2025, its impact or implications are clear. Non-suiting the applicant will be an injustice. Setting aside the order on spoliation does not mean that the applicant will go and put the fence back. It only means giving him an opportunity to appear before a Judge and argue his matter.

On costs, these are always at the discretion of the court and it is apt that each party bears its own costs.

Dondo and Partners, applicant's legal practitioners

Mutindi Bumhira Legal Practitioners, first respondent's legal practitioners